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April 2, 2013

BY ECF

Honorable Sterling Johnson, Jr.
United States District Court
Eastern District of New York
225 Cadman Plaza East
Brooklyn, New York 11201

Re: Rodney Watt v. City of New York, et al.
12-CV-00016 (SJ)(SMG)

Your Honor:

I am a Senior Counsel in the office of Michael A. Cardozo, Corporation Counsel of the City of New York, and the attorney assigned to the defense in the above-referenced matter. Enclosed please find a duly executed Stipulation and Order of Dismissal for Your Honor's endorsement and filing.

Thank you for your consideration herein.

Respectfully submitted,

/s/

Qiana Smith-Williams
Senior Counsel

cc: Paul Hale, Esq. (By ECF)

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

RODNEY WATT,

Plaintiff,

-against-

**STIPULATION AND
ORDER OF DISMISSAL**

12-CV-00016 (SJ)(SMG)

CITY OF NEW YORK, P.O. MATTHEW ZAPPIA (Sh. 4152), SGT. DENIS SAMUYLIN (Sh. 3457), P.O. JOSE SANDOVAL (Sh. 2243), P.O. MATTHEW BORDEN (Sh. 20404), SGT. DAMON MARTIN (Sh. 4173), P.O. "JANE DOE" AND "JOHN DOE" 1-10,

Defendants.

WHEREAS, the parties have reached a settlement agreement and now desire to resolve the remaining issues raised in this litigation, without further proceedings and without admitting any fault or liability;

NOW, THEREFORE, IT IS HEREBY STIPULATED AND AGREED, by and between the undersigned, that

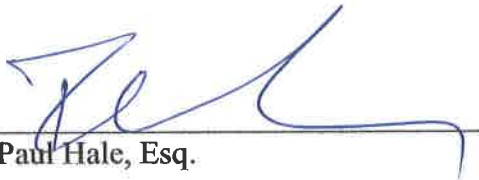
1. The above-referenced action is hereby dismissed with prejudice; and

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2. Notwithstanding the dismissal of this action in accordance with this agreement, the District Court shall continue to maintain jurisdiction over this action for the purpose of enforcing the terms of the settlement agreement reached between the parties and set forth in the Stipulation of Settlement executed by the parties in this matter.

PAUL HALE, ESQ.
Attorney for Plaintiff
26 Court Street
Brooklyn, New York 11242
718-554-7344

By:


Paul Hale, Esq.

MICHAEL A. CARDOZO
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City of New York
*Attorney for Defendants City of New York,
Zappia, Samuylin, Sandoval, Borden and
Martin*
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New York, New York 10007

By:


Qiana Smith-Williams
Senior Counsel

SO ORDERED:

Dated: New York, New York
_____, 2013

HON. STERLING JOHNSON, JR.
UNITED STATES DISTRICT JUDGE